

25NWCV01879 25NWCV01879

County: los-angeles

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Case Number: 25NWCV01879 Hearing Date: September 15, 2026 Dept: P

HECTOR MARQUEZ-MESA v. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 25NWCV01879

HEARING: 09/15/2026 @ 9:30 AM

#12

TENTATIVE ORDER

Plaintiff Hector Marquez-Mesa's request for attorney's fees and costs is GRANTED in the amount of \$15,756.96 reflecting \$14,540 in attorney's fees and \$1,216.96 in costs.

Moving party to give notice.

Plaintiff Hector Marquez-Mesa (Plaintiff) moves for an award of attorney's fees, costs, and expenses.

Background

On May 23, 2025, Plaintiff filed this lemon law action against Defendant American Honda Motor Co., Inc. (Defendant) and Does 1 through 10. The complaint alleges that Plaintiff experienced defects and nonconformities to warranty with his 2022 Honda Pilot. (Complaint, ¶¶ 28-30.) The complaint asserts three causes of action: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; and violation of Consumers Legal Remedies Act.

On March 19, 2026, Plaintiff filed a Notice of Settlement of Entire Case indicating that the parties entered into a conditional settlement agreement.

Legal Standard

The Song-Beverly Consumer Warranty Act provides for the award of attorneys' fees to prevailing plaintiffs as follows:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d).)

"Courts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof." (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247, citation omitted.) The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

Request for Judicial Notice

Plaintiff requests the Court takes judicial notice of three minute orders from prior civil actions in the Los Angeles County Superior Court.

Plaintiff's request for judicial notice is GRANTED pursuant to Evidence Code section 452, subdivision (d).

Discussion

Plaintiff moves for an award of attorney's fees and costs in the amount of \$21,483.96, including: (1) \$12,590 in attorney's fees, with a 1.3 times multiplier (for a total of \$16,367), (2) an additional \$3,000 for Plaintiff's counsel to review any opposition, draft a reply, and attend the hearing, with a 1.3 times multiplier (for a total of \$3,900), and (3) \$1,216.96 costs.

Entitlement to Fees

Plaintiff argues that he is the prevailing party pursuant to the parties' settlement agreement. Plaintiff signed Defendant's Section 998 Offer to Compromise on March 19, 2026. (Yousef Decl., ¶¶ 20-21.) Defendant does not dispute that Plaintiff is the prevailing party and thus entitled to reasonable attorney's fees and costs.

Accordingly, Plaintiff is entitled to reasonable attorney's fees and costs.

Reasonableness of the Hourly Rates

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court [...]." (Ibid.) "[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) "Courts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof." (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247, citation omitted.)

Plaintiff's counsels' fees and experience are summarized as follows:

Name

Position

Years of Experience

Hourly Rate

Ahmed Yousef

Associate

2

\$500

Marisa Mittleman

Pre-litigation & Appearance Attorney

12

N/A

Jennifer Romo

General Manager

6

\$225

Virginia Walls

Paralegal

7

\$250

Clarence May Serrano

Paralegal

7

N/A

Caleth Ibarra

Litigation Case Manager

N/A

\$200

Jose Gonzalez

Case Manager

N/A

\$200

Sven Mora

Filing Clerk

N/A

N/A

(Yousef Decl., ¶ 22.)

Plaintiff contends that the hourly rates are reasonable based on the prevailing market and that the hourly rates are supported by prior trial court orders.

Defendant contends the rate for Adam Yousef is excessive

based on his work performed.

Here, the Court finds \$500 for Adam Yousef reasonable.

However, upon review of the supporting declaration, there is no description for Oliver Tomas, Nikolas Mancera, or Christian Abad. While the Court finds the hourly rate of \$150 requested for Nikolas Mancera and Christian Abad reasonable, the rate of \$550 for Oliver Tomas is not reasonable without supporting information. The Court reduces this rate to \$500. This amounts to a total reduction of \$50 based on hourly rates.

Reasonableness of the Fees

The Court is vested with discretion to determine which claimed hours were reasonably spent and what an attorney's reasonable hourly rate is. (*Dover Mobile Estates v. Fiber Form Products, Inc.* (1990) 220 Cal.App.3d 1494, 1501; see also *Flannery v. California Highway Patrol* (1987) 61 Cal.App.4th 629, 644 ["We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court."].) "As the plain wording of section 1794, subdivision (d) makes clear, the trial court is 'to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.'" (*Mikhaeilpoor*, supra, 48 Cal.App.5th at p. 247, citation omitted.) "[C]ounsel's time records [should be used] as the starting point for [a court's] lodestar determination." (*Horsford v. Board of Trustees of CSU* (2005) 132 Cal.App.4th 359, 397.) In assessing a motion for attorney's fees, "[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.)

Plaintiff argues that the 37.30 hours billed in this matter are reasonable as they reflect the actual work spent on this litigation. Plaintiff supplies the billing records in support of the requested fees. (Yousef Decl., Exh. C.)

In opposition, Defendant proposes a 50% reduction for improper and unreasonable billing entries. Defendant contends that Plaintiff's billing records exhibit value billing and block billing. Defendant contends that Plaintiff's request attributes what Plaintiff's counsel believes the value of the task was, not the actual task spent. Defendant points to ten entries

which it contends exhibits block billing, value billing, or an attorney performing clerical work.

Upon review of Plaintiff's billing records, the Court does not find a 50% reduction in hours warranted. The Court agrees with Plaintiff's reply argument that a 50% reduction appears to be arbitrary, especially because Defendant only points to ten entries that it contends are unreasonable. Of these ten entries, Defendant contends that "Review D's responses to SROGs, FROGs, RFAs, and RFPs" for 0.7 hours is block-billing or "Review of notice of CMC from the court" for 0.2 hours exhibits value billing. The Court finds these, and the other entries noted by Defendant, to be reasonably incurred in the commencement and prosecution of this action. (See Civ. Code, § 1794, subd. (d).)

Plaintiff additionally requests \$3,000 in anticipated fees arising out of this motion. This request is not supported by any declaration or breakdown in hours. The Court reduces this request by 1 hour because it is unable to measure the reasonableness of this request. A reduction of 1 hour is aimed in attributing 1 hour to review the opposition, 2 hours to draft and file a reply, and 1 hour to attend the hearing. At an hourly rate of \$500, this reflects \$2,000, or a \$1,000 reduction.

Thus, based on the reduction in hourly rates and the reduction in fees, the court reduces a total of \$1,050.

Lodestar Multiplier

The lodestar amount "may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1399 [citing Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132].) The purpose of any lodestar and the increase thereto "is intended to approximate market-level compensation for such services" and is entirely discretionary. (Ibid.) "The purpose of a fee enhancement is not to reward attorneys for litigating certain kinds of cases, but to fix a reasonable fee in a particular action." (Weeks v. Baker & McKenzie (1998) 63 Cal.App.4th 1128, 1171-72.)

Plaintiff requests a 1.3 multiplier based on the risk of taking this case on a contingent fee basis and the result achieved.

The Court declines to apply a positive multiplier. The Court finds that this case was relatively simple—lasting less than one year before settlement and involving no motion practice except this one. There is nothing to indicate this matter was notably complicated or precluded other employment.

Costs

Plaintiff requests \$1,216.96 in costs. This amount is not disputed by Defendant in opposition.

Therefore, the Court awards \$1,216.96 in costs.

Accordingly, Plaintiff's request for attorney's fees and costs is GRANTED in the amount of \$15,756.96 reflecting \$14,540 in attorney's fees and \$1,216.96 in costs.